

TENTATIVE RULING FOR JULY 13, 2026

Department R12 - Judge Kory Mathewson

Wells Fargo Bank, NA v Ashley E. Ayala – CIVRS2508685

Motion: Summary Judgment

Movant: Plaintiff Wells Fargo Bank, N.A.

Respondent: Defendant Ashley E. Ayala

Ruling: Motion for Summary Judgment is CONTINUED to 8/12/2026, 9AM, R12.

Defendant's opposing separate statement refers to Defendant's declaration filed in opposition to the motion, and the reply papers also suggest Defendant may have filed evidentiary objections under separate cover. However, neither Defendant's declaration nor her evidentiary objections are scanned into Enterprise Justice and have not been properly filed with the Court. For these reasons, the Court continues the hearing and orders Defendant to file these documents forthwith.

Dated: July 13, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR JULY 13, 2026

Department R12 - Judge Kory Mathewson

Ortiz v. J.E.P. Capital, Inc., et al – CIVSB2301598

Motion: (1) Motion to Compel Further Responses to Form Interrogatories (Set One) from Tokio Marine & Nichido Fire Insurance Co., Ltd.

(2) Motion to Compel Further Responses to Form Interrogatories (Set One) from Tokio Marine HCC

(3) Motion to Compel Further Responses to Form Interrogatories (Set One) from HCC Insurance Holdings

Movant: (1-3) Plaintiff Mynor Ortiz dba Atlantis Water Systems

Respondent: (1) Defendant Tokio Marine & Nichido Fire Insurance Co., Ltd.

(2) Defendant Tokio Marine HCC

(3) Defendant HCC Insurance Holdings

Ruling: Plaintiff's motions are GRANTED. Defendants Tokio Marine & Nichido Fire Insurance Co., Ltd.; Tokio Marine HCC; and HCC Insurance Holdings are Ordered to provide supplemental responses pursuant to the parties' agreement in the July 8, 2026 joint declaration. HCC Casualty is Ordered to determine if supplemental responses are required given the definition of "incident" the parties have agreed to. Sanctions are denied to all parties as not justified under the circumstances.

Plaintiff to provide Order and give notice.

A joint declaration was filed on July 8, 2026, which states Plaintiff and Carrier Defendants' counsel met and conferred regarding the pending form interrogatory motions before the Court.

With respect to HCC Casualty, it will review its supplemental responses based on the agreed definition of "incident" and determine whether to provide further supplemental responses.

As for the other parties whose motions are before the Court, Tokio Fire, in Japan, will provide verified supplemental responses within 60 days of July 8, 2026. Tokio HCC and HCC Holdings will provide supplemental responses within 30 days of July 8, 2026.

As for taking the current motions off calendar, Carrier Defendants state they believed that Plaintiff would withdraw her motions given the parties agreement. Plaintiff's counsel stated that no agreement could be reached to withdraw until supplemental responses are received and the issue of sanctions is resolved.

In light of Tokio Fire, Tokio HCC, and HCC Insurance Holdings, agreeing to provide supplemental responses pursuant to the terms of their agreement, the Court grants the motions and orders these Defendants to provide supplemental responses according to the parties' agreement.

As for HCC Casualty, the Plaintiff agrees that HCC Casualty may determine if supplemental responses are required given the definition of "incident" the parties have agreed to. Therefore, there is no reason for the HCC Casualty motion to remain on calendar, and is off calendar.

Sanctions

Sanctions are denied as to all parties. Plaintiff's requests for sanctions are not justified under the circumstances. There are issues with the meet and confer, and the amount Plaintiff seeks and hourly rate is not demonstrated to be reasonable. As for Defendants, by agreeing to, or by already serving supplemental responses as HCC Casualty has, Defendants concede supplemental responses were warranted. HCC also now agrees to determine if supplemental responses are required given the definition of "incident."

Dated: July 13, 2026

Judge Kory Mathewson